

UNITED STATES DISTRICT COURT  
SOUTHERN DISTRICT OF NEW YORK

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JORMAR FARINO, MARIO BRAVO, CHRISTOPHER  
CARRASCO, and RODRIGO ROSERO,

Plaintiffs,

-v-

**COMPLAINT  
AND DEMAND  
FOR A JURY TRIAL**

Index No. 15-CV-7484

THE CITY OF NEW YORK, New York City Police  
Department Officer ("P.O.") COTY GREEN  
(Shield No. 14012) and P.O. ROMAINE WILSON  
(Shield No. 910), P.O. JOHN DOES 1-6 (whose identities are  
currently unknown but who are known to be police  
officers and/or supervisory personnel of the New York  
City Police Department) in their individual capacities,

Defendants.

-----X  
Plaintiffs JORMAR FARINO, MARIO BRAVO, CHRISTOPHER CARRASCO, and  
RODRIGO ROSERO, through their attorney Mark C. Taylor of Rankin & Taylor, PLLC as and  
for their complaint, do hereby state and allege:

**PRELIMINARY STATEMENT**

1. This is a civil rights action brought to vindicate plaintiff's rights under the Fourth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, with pendant claims under the laws of the State of New York.
2. Plaintiffs JORMAR FARINO, MARIO BRAVO, CHRISTOPHER CARRASCO, and RODRIGO ROSERO's rights were violated when officers of the NEW YORK CITY POLICE DEPARTMENT ("NYPD") unconstitutionally and without any legal basis arrested

them without justification. By reason of defendants' actions, including their unreasonable and unlawful seizure of Plaintiffs' persons, they were deprived of their constitutional rights.

3. Plaintiffs seek an award of compensatory and punitive damages and attorneys' fees.

### **JURISDICTION AND VENUE**

4. This Court has subject matter jurisdiction over federal claims pursuant to 28 U.S.C. §§ 1331, 1343(a)(3-4). This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of the Fourth and Fourteenth Amendments to the Constitution of the United States.
5. Venue is proper pursuant to 28 U.S.C. § 1391(b)(2) in that plaintiffs' claim arose in the Southern District of New York.
6. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. §1988.

### **PARTIES**

7. Plaintiff JORMAR FARINO ("FARINO") was at all times relevant to this action a resident of Bronx County in the State of New York. Plaintiff MARIO BRAVO ("BRAVO") was at all times relevant to this action a resident of Bronx County in the State of New York. Plaintiff CHRISTOPHER ("CARRASCO") was at all times relevant to this action a resident of Bronx County in the State of New York. Plaintiff RODRIGO ROSERO ("ROSERO") was at all times relevant to this action a resident of Bronx County in the State of New York.
8. Defendant THE CITY OF NEW YORK ("CITY") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant CITY assumes the risks incidental to the maintenance of a

police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

9. NYPD Officer (“P.O.”) COTY GREEN (Shield No. 14012) “GREEN,” and P.O. ROMAINE WILSON (Shield No. 910) “WILSON”, and P.O. JOHN DOES 1-6 are and were at all times relevant herein, officers, employees and agents of the NYPD and will collectively be referred to as “Individual Defendants”.
10. The individual defendants are being sued herein in their individual capacities.
11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

#### **STATEMENT OF FACTS**

12. Mr. FARINO, Mr. BRAVO, Mr. CARRASCO, and Mr. ROSERO were falsely arrested by P.O. COTY GREEN, at approximately 5:45 a.m., on the premises of 365 Beekman Avenue in Bronx County in the State of New York.
13. Mr. FARINO, Mr. BRAVO, Mr. CARRASCO, and Mr. ROSERO were socializing in Mr. CARRASCO’s yard.
14. Several cars of uniformed NYPD officers arrived at the address.
15. Uniformed officers, including P.O. COTY and P.O. WILSON entered Ms. Carrasco’s yard, without consent.



16. Officers handcuffed all four men and made them sit on the ground.
17. Without cause, one of the uniformed officers fired his handgun, scaring the plaintiffs and temporarily impairing their sight and hearing.
18. The plaintiffs were transported to the 40<sup>th</sup> Precinct Stationhouse.
19. Mr. FARINO, Mr. BRAVO, Mr. CARRASCO, and Mr. ROSERO spent over 24 hours in the defendants' custody as a result of their arrest.
20. As a result of their handcuffing and arrest, Mr. FARINO, Mr. BRAVO, Mr. CARRASCO, and Mr. ROSERO experienced pain, suffering, mental anguish, and humiliation.
21. Mr. FARINO, Mr. BRAVO, Mr. CARRASCO, and Mr. ROSERO were charged with Resisting Arrest, Making Graffiti, Criminal Mischief and Possession of Graffiti Instruments.
22. The charges against Mr. FARINO, Mr. BRAVO, and Mr. CARRASCO dismissed on February 7, 2013.
23. The charges against Mr. ROSERO were dismissed on April 10, 2014.

**FIRST CLAIM FOR RELIEF  
DEPRIVATION OF RIGHTS  
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983  
(Against all Defendants)**

24. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
25. Defendants, under color of state law, subjected the plaintiffs to the foregoing acts and omissions, thereby depriving plaintiff of their rights, privileges and immunities secured by the Fourth and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable seizure of their persons; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment; (d) freedom from the lodging of false charges against them by police

officers; (e); freedom from having police officers fabricate evidence against them; (f) and freedom from malicious prosecution.

26. Defendants' deprivation of plaintiffs' constitutional rights resulted in the injuries and damages set forth above.

**SECOND CLAIM**  
**MONELL CLAIM AGAINST DEFENDANT CITY – 42 U.S.C. § 1983**  
**(Against the City of New York)**

27. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

28. At all times material to this complaint, defendant THE CITY OF NEW YORK had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

29. At all times material to this complaint, defendant THE CITY OF NEW YORK failed to properly train, screen, supervise, or discipline its employees and police officers, including defendants P.O. GREEN and P.O. WILSON and failed to inform the individual defendant's supervisors of their need to train, screen, supervise or discipline the individual defendants, concerning the proper parties who may be arrested.

30. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

31. As a result of the foregoing, plaintiff was deprived of liberty, suffered emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

**JURY DEMAND**

32. Plaintiffs demand a trial by jury in this action on each and every one of their damage claims.

WHEREFORE, plaintiff demands judgment against the defendants individually and jointly and prays for relief as follows:

- a. That they be compensated for violation of their constitutional rights, pain, suffering, mental anguish, and humiliation; and
- b. That they be awarded punitive damages against the individual defendants; and
- c. That they be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. For such other further and different relief as to the Court may seem just and proper.

Dated: New York, New York  
September 21, 2015

Respectfully submitted,

By:



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